

Australia has recently reformed its illegal logging laws. The reformed [Illegal Logging Prohibition Act 2012 \(Act\)](#) and [Illegal Logging Prohibition Rules 2024 \(Rules\)](#) are now in effect.

Please visit our [illegal logging page](#) for information on the changes and links to guidance material.

Download

Accessible versions of these documents are pending, in the interim please email illegallogging@aff.gov.au for assistance.

Between August and September 2024, we sought feedback on the draft Rules from timber importers and processors, customs brokers, NGOs and other interested parties. The draft Rules aimed to find the balance between streamlining due diligence for regulated entities as outlined in the [Sunsetting Review Regulation Impact Statement](#), while still effectively preventing illegally logged timber and timber products entering the Australian market.

We considered the feedback received during the public consultation process and adjusted the draft Rules before they were finalised and made into law.

The Rules complement the reformed [Illegal Logging Prohibition Act 2012](#) and came into effect on 3 March 2025. We have developed and updated guidance material accordingly.

Get updates

Stay updated on upcoming events and Australia's illegal logging laws by subscribing to our [illegal logging mailing list](#).

The [Sunsetting Review of the Illegal Logging Regulation](#) led to the development of the [Illegal Logging Prohibition Amendment \(Strengthening Measures to Prevent Illegal Timber Trade\) Bill 2024 \(Bill\)](#), which was passed by the Australian Parliament and received Royal Assent on 17 September 2024.

As part of the parliamentary process, the Bill was referred to the Rural and Regional Affairs and Transport Legislation Committee for inquiry and report in May 2024.

You can read more about this inquiry, including public submissions received by the Committee, on the [Parliament of Australia's website](#).

The reformed Act came into effect on 3 March 2025 and we have updated guidance material accordingly.

Guiding reform implementation

The Australian Government provided up to \$4.4 million over two years (2022-24) to trial timber testing technologies and determine their optimal use under revised illegal logging laws. The trialled timber identification methods can be used to verify claims of species and/or origin of timber products entering the Australian market.

Under the funding measure, the department also explored IT solutions for streamlining data collection and management of declarations, as well as supporting the expansion of a [global timber reference database](#).

We will update our regulated community when the new timber testing regime and e-declaration system are implemented.

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In July 2021, we released a consultation paper and summary of the paper seeking stakeholder feedback on potential reforms to the Illegal Logging Prohibition Regulation 2012 (Regulation) and the associated Illegal Logging Prohibition Act 2012 (Act).

In August 2021, we held a webinar to provide the regulated community and other interested stakeholders with information on the Sunset Review process and potential reforms. Links to the webinar recording are below.

Feedback was sought to ensure the laws:

- remain effective in protecting the Australian market from illegally logged timber
- achieve their purpose of promoting trade in sustainable, legally harvested timber.

Stakeholders provided valuable feedback on a wide range of potential reforms to the Act and the Regulation. We used this feedback to develop the Illegal Logging Prohibition Regulation 2012: Regulation Impact Statement (RIS) that explored the costs and benefits of proposed reforms and other legislative options.

The Minister considered the RIS and in December 2022 agreed to pursue the recommended option of reforming the legislation. This option was selected over the alternate options to either remake the Regulation as is or let it lapse - or 'sunset' - on its original sunset date of 1 April 2023. The sunset date was later deferred to 1 April 2025. These reforms required changes to both the Act and the Regulation.

Key reforms agreed to by the Minister to pursue included:

- enabling the department to receive due diligence information, such as the timber species and harvest location from regulated entities upfront prior to import/processing
- adding powers to sample, seize and hold regulated timber products
- adding injunction and enforceable undertaking powers
- adding powers to publish compliance findings and instances of non-compliance
- streamlining due diligence for low-risk pathways
- reducing due diligence for identical repeat pathways
- adding and improving definitions

The following reforms were not be progressed as they either lacked support, proved technically unfeasible, or required further consultation to arrive at a decision:

- optimising the regulatory burden for low frequency importers
- implementing licencing or third-party audits for high frequency importers
- optimising the products regulated including broadening exemptions and reducing due diligence burden for low-risk products
- prohibiting imports of logs from countries with existing log export bans.

Details of these proposed reforms were outlined in the RIS (Option 3, page 20).

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Important to note: the below resources have been superseded and are provided for point in time information only. Current resources are available on the [importer](#) and [processor](#) pages.

Download the Regulation Impact Statement

[Sunsetting review of the Illegal Logging Prohibition Regulation 2012: regulation impact statement \(PDF 908 KB\)](#) [Sunsetting review of the Illegal Logging Prohibition Regulation 2012: regulation impact statement \(DOCX 14.5 MB\)](#)

Download the Consultation Paper

[Sunsetting review of the Illegal Logging Prohibition 2012: consultation paper \(PDF 851 KB\)](#) [Sunsetting review of the Illegal Logging Prohibition 2012: consultation paper \(DOCX 2.8 MB\)](#)

[Sunsetting Review of the Illegal Logging Prohibition Regulation 2012: overview paper \(PDF 253 KB\)](#) [Sunsetting Review of the Illegal Logging Prohibition Regulation 2012: overview paper \(DOCX 78 KB\)](#)

In January 2019 we published a report examining the first 5 years of Australia's illegal logging laws in January 2019. The 'Statutory review of the Illegal Logging Prohibition Act 2012':

- assessed the extent that the Illegal Logging Prohibition Act 2012 and associated Illegal Logging Prohibition Regulation 2012 met our illegal logging policy objectives
- highlighted operational issues encountered during the Act's first 5 years of operation
- identified potential options for improving the Act's operation.

In October 2019, the government decided not to make significant changes to the Illegal Logging Prohibition Act 2012. This decision was based on advice from the Forest Industry Advisory Council (FIAC) on the review's outcomes.

Industry members were given an extended period of regulatory certainty, during which they could focus on ensuring they only trade in legally sourced wood products.

The 2021 review (detailed above) consider future changes to the Act.

Download the Review Report

[Statutory review of the Illegal Logging Prohibition Act 2012 - Review report \(PDF 1.2 MB\)](#) [Statutory review of the Illegal Logging Prohibition Act 2012 - Review report \(DOCX 2.1 MB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

In October 2017, we published the Reforming Australia's illegal logging regulations - Regulation Impact Statement (RIS). The RIS built on the findings of the earlier KPMG Independent review

The RIS looked at options for reducing costs associated with complying with the due diligence requirements. It examined 6 potential regulatory options:

- Continue with the 'status quo'
- Change the consignment value threshold
- Remove personal imports
- Establish a deemed to comply arrangement for timber legality frameworks
- Establish a deemed to comply arrangement for Country or State Specific Guidelines
- Establish a deemed to comply arrangement for low-risk countries

The RIS was informed by a public consultation process undertaken in late 2016. A full list of the submissions made to the review can be found at the back of the RIS.

The RIS resulted in a series of proposed regulatory amendments being tabled in Parliament in October 2017. These were intended to streamline and clarify the due diligence requirements. The key proposed reform was the establishment of a new 'deemed to comply' arrangement for products certified under the Forest Stewardship Council (FSC) and Programme for Endorsement Certification (PEFC) schemes.

On 8 February 2018, the proposed 'deemed to comply' arrangement was debated in the Australian Senate and the associated regulatory amendments were disallowed. Other minor technical amendments that were progressed in the same package were not affected by the disallowance.

Download the Regulation Impact Statement

[Reforming Australia's illegal logging regulations – Regulation Impact Statement \(PDF 2.0 MB\)](#)
[Reforming Australia's illegal logging regulations – Regulation Impact Statement \(DOCX 3.0 MB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

In December 2014, we commissioned KPMG to conduct an independent review of the illegal logging laws. The review examined whether the due diligence requirements struck an appropriate balance between:

- the costs of compliance for small businesses, and
- reducing the risk of illegally logged timber entering the Australian market

The review found there was an opportunity to amend the Regulation to strike a better balance between the two objectives.

Our response released in February 2016 provided in-principle support for the review's findings. It committed to progressing a package of reforms. This included the consideration of regulatory reforms through a further RIS process .

Download the KPMG independent review

[Independent Review of the impact of the illegal logging regulations on small business \(PDF 1.29 MB\)](#)

[Independent Review of the impact of the illegal logging regulations on small business \(DOCX 464 KB\)](#)

[Government response to the Independent Review of the impact of the illegal logging regulations on small business \(PDF 500 KB\)](#) [Government response to the Independent Review of the impact of the illegal logging regulations on small business \(DOC 100 KB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

In 2011, we published the “Australian Government policy on illegally logged timber” Regulation Impact Statement (RIS). This was part of the development of Australia’s illegal logging laws. This original RIS assessed the potential costs and benefits for business, individuals and the Australian economy of regulatory options to restrict the importation of illegally logged timber into Australia.

Download the Regulation Impact Statement

[Regulation Impact Statement: Australian Government policy on illegally logged timber, Department of Agriculture \(PDF 598 KB\)](#) [Regulation Impact Statement: Australian Government policy on illegally logged timber, Department of Agriculture \(DOC 803 KB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

This statement categorises the structure and nature of small businesses operating within the Australian forest products industry. It also assesses how the illegal logging policy will affect those businesses.

Download the Small Business Impact Statement

[Small Business Impact Statement, Cailum Pty Ltd \(PDF 471 KB\)](#) [Small Business Impact Statement, Cailum Pty Ltd \(DOC 617 KB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

Illegal logging reporting

Call 1800 803 006

See [Report Illegal Logging](#)

Email [Operational Intelligence and Coordination Branch](#)

Source: <https://www.agriculture.gov.au/agriculture-land/forestry/policies/illegal-logging/legislation-reviews-and-consultation>